

Court No. - 3

Case :- WRIT - C No. - 18815 of 2022

Petitioner :- Rajesh Yadav

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sanjeev Kumar Srivastava, Parvesh Kumar Pandey

Counsel for Respondent :- CSC, Chetan Chatterjee

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Chetan Chatterjee, learned counsel for the respondent No.2.

This writ petition has been filed praying for the following relief:

"i. Issue a writ, order or direction, in the nature of certiorari quashing the impugned recovery citation dated 23.07.2021 issued by respondent no.3 in pursuance of penalties imposed by respondent no.2 Rs.2,33,096/-, under Section 5 of U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958.

ii. Issue a writ, order, or direction, in the nature of mandamus, commanding and directing to respondent no.2 to decide the application of the petitioner pending before him for consideration."

Sri Chetan Chatterjee, learned counsel for the respondent No.2/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under **Para 6.8 of U.P. Electricity Supply Code, 2005** before the respondent No.2, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 15.7.2022

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